Revolving door lobbyists and interest representation

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Abstract Although experience inside the halls of power afford lobbyists valuable political, policy and procedural skills that can improve the deliberative process, it also gives them privileged access to former employers that others do not have. Washington's revolving door evokes legitimate ethical concerns, such as when former legislators resign their seats to take lucrative jobs representing the very industries they regulate. However, social scientists know surprisingly little about the revolving door beyond such sensational, albeit important, cases. To shed more light on the broader phenomenon, we systematically explore the revolving door on a large scale to answer a simple question: Do revolving door lobbyists represent different interests than conventional lobbyists? If, as revolving door proponents imply, these lobbyists work on behalf of organized interests solely for their specialized subject-matter expertise, then we would expect them to represent clienteles that are no different than conventional lobbyists. Alternatively, if they represent a wider variety of economic interests than conventional lobbyists then we assume they are hired more for their ability to get a foot in the door than to serve as policy expert adjuncts to government. Using evidence from original data on the professional biographies of roughly 1600 registered lobbyists – which we link to data from almost 50 000 quarterly Lobbying Disclosure Act reports – we expose a significant transparency loophole in the law. Because lobbyists are not required to continuously disclose their 'covered official' status – the statutory definition of revolving door – periodic lobbying disclosure reports effectively hide the revolving door from public scrutiny. Instead, we rely on our more comprehensive information on lobbyists' connections to previous employers to more accurately measure the size and scope of Washington's revolving door, and to investigate how these connections affect which interests they represent. We find that revolving door lobbyists have worked mostly in Congress, tend to work as contract lobbyists rather than in-house government-relations staff and are more likely to specialize in lobbying for appropriations earmarks. Then, after controlling for a variety of lobbying specializations, we show that former members of Congress are no more likely than other lobbyists to attract a more economically diverse set of clients than their conventional-lobbyist counterparts. However, congressional staffers who had worked their way up

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the organizational ladder on Capitol Hill do. We infer that well-connected congressional staffers who spin through the revolving door sell access to key decision makers in Congress, not their industry- or issue-specific technical or substantive expertise. Simply, the revolving door problem is not limited to a handful of headline-catching former legislators, is much bigger than the existing lobbying disclosure regime reveals and – most importantly – significantly distorts the representation of interests before government. The practical implications are clear: lobbying transparency rules, cooling-off periods and other restrictions are insufficient disincentives. Interest group demand for access is simply too strong. We advocate enhancing lobbying transparency by expanding the statutory definitions of lobbying activities, requiring lobbyists to disclose more details about government employment and shifting some of the disclosure burden to democratically accountable government officials themselves.
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The so-called revolving door between government and the lobbying profession presents a conundrum in American politics: lobbyists play a critical and legitimate role in the policy process, yet the advantages that come with having worked inside the halls of power gives the interests they represent undue influence.

There are two competing normative views of revolving door lobbying. Interest groups supply important information and subject-matter expertise to government so that it can do its job (Bauer *et al*, 1963; Esterling, 2004; Hall and Deardorff, 2006). Interest groups are normatively justified if citizens are equally represented and their interests are faithfully communicated in a way that minimizes rent-seeking and maximizes deliberation (Mansbridge, 1992). Consequently – defenders of the revolving door point out – lobbyists with valuable policy subject-matter expertise that comes with government experience are better suited to supply the information that policymakers need to make well-reasoned decisions.

Critics respond that it is not so much the policy expertise, but rather lobbyists' personal connections and insider knowledge that make them valuable. When organized interests are heard solely because they hire those with the right connections – not because they have the best ideas – the democratic process suffers. Having the right person return your call or understanding how things *really* get done is not the normative equivalent to supplying critical information subsidies.

Moreover, pundits and watchdogs condemn the revolving door because they see lobbyists lining their own pockets in pursuit of particularized benefits rather than enhancing the quality of policy debates. Legal scholar Larry Lessig goes so far as to declare revolving door lobbying to be evidence of an institutionally corrupt gift

economy, where a policy favor granted today is presumed to be rewarded with a lucrative job on K Street tomorrow (2011). This theme is familiar, as in a recent *Washington Post* editorial: 'Gone … are the days when members of Congress scrupled to become lobbyists upon their departure from office. Now, representatives and senators spin like dervishes through the revolving door' (Washington Post Editorial Board, 2012).

For example, critics point to Representative Jo Ann Emerson (R-MO) – a member of the congressional subcommittee responsible for funding rural development projects – who shocked her colleagues just 9 days after decisively winning reelection to a tenth term by announcing that she was becoming CEO of the National Rural Electric Cooperative Association. Presumably, detractors claim, Emerson did not believe that she could do much about rural development as a mere Congresswoman on the Appropriations Committee, though a seven-figure salary may have nudged her through the revolving door.

There is little doubt that elected officials and their professional employees have incentives to parlay their public service into private gain in the political influence industry. Though such denunciations are often general and speculative, an important normative concern underscores them: revolving door lobbyists have the experience inside the halls of government and the privileged access to those in power that other lobbyists – let alone the typical citizen – can never obtain. What is missing, though, is sound empirical evidence about how widespread the practice is, and how it affects interest representation in Washington. Social scientists know surprisingly little about the revolving door beyond sensational, albeit important, cases like Emerson's.

Still, questions about the revolving door have long fascinated political scientists concerned about interest group influence. At least since Herring's (1929) account of lawyers and lobbyists in Washington, scholars have speculated how government experience and professional connections supply access and influence on Capitol Hill and within the executive branch. Later, Bauer *et al* (1963), Milbrath (1963), Deakin (1966) and Zeigler and Baer (1969) describe the movement of government bureaucrats into the lobbying profession in a handful of policy domains.

The picture painted by these early observers was one of the efficient information sharing between government bureaucrats and the lobbyists with whom they work so closely. These qualitative accounts illuminated the relationships between government personnel and lobbyists, but they did not reveal how common the revolving door was or uncover how, or even if, it affected the policy process. Gormley (1979) was the first to explicitly test the 'revolving door hypothesis', though in the reverse direction. His study of the Federal Communications Commission demonstrates that commissioners who had once worked in the broadcast industry are more likely to side with that industry's positions on proposed regulations. This work inspired additional tests of the revolving door hypothesis in a variety of government venues (Quirk, 1981; McGuire, 2000), over time (Cohen, 1986), in selected policy domains (Salisbury *et al*, 1989; Hansen, 1991; Lazarus and McKay, 2012; Citizens for Responsibility

and Ethics in Washington, 2012) and for selected lobbyists and firms (Revolving Door Working Group, 2005; Public Citizen, 2005). As with much work on interest group politics (Baumgartner and Leech, 1998), most revolving door studies suffer from case selection bias, as they typically focus only on one or a few government institutions or policy areas.

A handful of studies more explicitly examine revolving door lobbying on a broader scale. Heinz *et al* (1993) interviewed nearly 800 lobbyists and policy advocates about their lobbying careers, and asked them about their previous government jobs. Roughly 70 per cent indicated that their government employment contributed to increased issue familiarity, and 89 per cent reported that their experience provided a helpful knowledge of the decision making process. Lobbyists self-report that working in government gave them both procedural knowledge and subject-matter expertise, but they do not mention access to former colleagues *per se*. The authors appear sanguine about the revolving door, concluding that journalistic accounts of abuse are 'horror stories' at best.

Baumgartner *et al* (2009) reach a different conclusion about the impact of the revolving door in their study of lobbying across a random sample of 98 issues. Of the many resources that advocates have at their disposal, hiring 'covered official' lobbyists – those included in the Lobbying Disclosure Act's (LDA) statutory requirement that registered lobbyists report any federal government employment in the preceding 20 years – is the *only* independent variable other than having powerful government officials champion a lobbying campaign's cause from the inside that systematically predicts lobbying success (Baumgartner *et al*, 2009, p. 208). Having greater aggregated material resources such as campaign donations, lobbying expenditures, corporate financial resources or organizational size is not associated with successful policy outcomes. But having a greater number of well-connected lobbyists on your side can be decisive.

Recently, there has been renewed attention to the revolving door, with several research projects designed explicitly to study its effects on lobbying and political influence. Lazarus and McKay (2012) link lobbying disclosures to education funding data and find that universities increase the likelihood of receiving earmarked federal funds when they hire revolving door lobbyists. Blanes i Vidal *et al* (2012) match the names of registered lobbyists with congressional payroll records and find that those who previously worked for sitting members of Congress earn more than lobbyists who did not. Moreover, their income drops immediately after their former congressional employers leave office. Using a similar design with slightly different data, Bertrand *et al* (2011) find that lobbyists tend to switch the issues on which they are active when their previous congressional employer moves from one committee to another. In addition, Eggers and Hainmueller (2009) and González-Bailon *et al* (2013) track private-sector employment of former government officials in the United Kingdom, though this work does not explicitly address lobbying.

Government officials gain from having former employees as lobbyists as well, which may not be surprising given former Republican Whip Tom DeLay's well-publicized attempt to fill lobbying positions with fellow partisans in the K Street Project (Loomis, 2007). Eggers (2010) finds evidence of a partisan revolving door beyond this episode; lobbyists with affiliations to the party in power take on more clients. Taken together, a growing literature convincingly supports the view that lobbyists' prior employment connections to members of Congress are more important than their issue expertise.

These large-scale empirical studies offer important insight into revolving door lobbyists' value and behavior. Yet they adopt problematic or incomplete measures of the revolving door. While Baumgartner *et al* (2009) rely solely on LDA self-reports, critics of the LDA have long pointed out its weaknesses (Fried *et al*, 2011). Puzzlingly, lobbyists are only required to report their covered official status one time for each client, either on the initial registration form filed on behalf of a client or on the first quarterly report on which she or he is listed as an active lobbyist on behalf of that client (Clerk of the United States House of Representatives, 2011). In addition, lobbyists must only report one instance of previous government employment, though, as we conservatively estimate below, nearly half of revolving door lobbyists held multiple positions in government. This poorly designed disclosure procedure means relying on self-reports alone significantly underestimates the number of revolving door lobbyists.

Since our primary purpose is to accurately measure the size and scope of the revolving door lobbyist population, we designed this project to exhaustively account for lobbyists' government employment histories. We first draw a random sample of registered lobbyists and then independently verify previous employment from a variety of sources, including but not limited to the payroll and commercial directory sources used in previous studies. Armed with more complete information about individual lobbyists that are not readily available on lobbying disclosure reports, we are able to test a hypothesis about how lobbyists' connections to previous government employers affect their clienteles.

Our theory of interest representation departs from typical models. We assume that individual lobbyists have influence on the policy process that is independent from the organized interests they represent (Lowery and Marchetti, 2012). By treating individual lobbyists as the unit of analysis, we contribute new insights into the debate over lobbying as expert information exchange versus lobbying as access peddling.

Selling Access or Expertise? A Revolving Door Theory of Interest Representation

Our central concern is whether revolving door lobbyists represent a qualitatively different clientele than their conventional, non-revolving door counterparts.

Our objective is not to paint the lobbying profession with a broad or cynical brush. Rather, we differentiate between those lobbyists who fit the policy expert, information-adjunct view and those who fit the access-peddling perspective. We recognize that these are not mutually exclusive characterizations, and both perspectives are descriptively accurate. All lobbyists serve both an information function and an access function. A lobbyist who has access to those in power but who cannot grapple with policy details would not be useful to any organized interest. And vice versa, a policy expert who has the ear of nobody in power will have little direct influence on the policy process.

We assume that the popular use of the 'access' concept implies not only that lobbyists know people in relevant government institutions, but also know those institutions' norms and routines. The problem is that these two quite different behaviors are observationally equivalent if all we know is that a lobbyist communicates some policy preference to a policymaker. Accordingly, we seek to differentiate kinds of lobbyists – those oriented more toward policy expertise from those more inclined to trade on their access to the people in government who matter – by exploring the kinds of interests they represent.

If, in the aggregate, interest groups are defended for contributing ideas to policy debates that affect them then we should expect organizations with similar political and economic interests before the government to seek out the services of lobbyists with policy domain-specific expertise. All else being equal, these expert lobbyists will attract clients with very similar interests, even if they have competing preferences over specific policy alternatives. For instance, a lobbyist with technical expertise on telecommunications policy will represent clients from the electronics and communication industry, an agriculture lobbyist will represent food producer clients and so on. Under the pluralist ideal, their connections ought not to matter, as policymakers will seek out the information that is most useful to their efforts.[1]

Conversely, the access-peddling perspective of lobbying suggests that lobbyists with personal connections to those in office and insider know-how will attract clients irrespective of their underlying interests. Interest organizations will hire lobbyists for their ability to get a foot in the door to key policymakers, not their hyper-specialized knowledge of how regulations affect particular industries. As a result, revolving door lobbyists will represent clients from a variety of unrelated economic sectors and client portfolios will be much more diverse than their conventional counterparts.

Drawing on these simple assumptions from the two dominant views on how lobbyists represent organized interests, we can deduce a single, central hypothesis about interest representation:

> *Revolving Door Hypothesis*: Lobbyists with previous employment in the federal government will represent clients from a more diverse set of economic sectors than conventional lobbyists who have not worked in government.

This straightforward expectation yields several intuitive hypothetical corollaries about lobbyists with different kinds of government experience. First, revolving door

lobbyists who held multiple jobs in the government will have more connections. A lobbyist who worked in a single congressional office will be much less attractive to clients seeking access than one who worked in several offices, let alone one who worked in both chambers of the legislature, multiple branches of government and so on. Second, not all federal positions are equivalent. Former members of Congress, staffers who worked in higher-ranking offices on Capitol Hill and White House staffers will be valued for their connections more than others. Third, experience in the executive branch differs between civil service and political appointees, so that there will be differences between partisan appointees and career bureaucrats. These bureaucrats-turned-lobbyists will more likely concentrate their attention to clients in the industry their agencies regulated.

Though our primary focus is on how former government employment affects the diversity of lobbyists' clienteles, we recognize that individual lobbyists differ by more than whether or not they went through the revolving door. We thus account for the lobbying industry's labor market characteristics as well. Like all professionals, lobbyists have distinct business models and occupational circumstances that will necessarily impact clientele diversity despite their previous public service.[2]

Contract lobbyists will unsurprisingly have a more diverse clientele. By definition, in-house lobbyists will only have a single client: their employer. We also recognize that in-house lobbyists may be hired explicitly for their insider knowledge or connections. We do not suggest that their previous government work is immaterial. But we would be remiss if we did not control for contract and in-house lobbying when measuring clientele diversity.

In addition, not all contract lobbyists have the same motivations in recruiting clients. Some lobbyists work at large, general interest law and lobbying firms, whereas other for-hire firms compete in niche markets. That is, lobbyists who work at 'boutique' firms that concentrate on particular issues, or market to clients from specific geographic regions, industries or other categories, will not only have fewer clients, but a more concentrated portfolio. It is reasonable to expect that different kinds of firms will be home to lobbyists who book different clienteles, with large firms more likely to represent a variety of economic interests.

There are other specializations among lobbyists who ought to be associated with patterns of interest representation as well. Some lobbyists specialize in legislative policy, and others focus on legal and regulatory matters, while another group works on appropriations earmarks. Lobbyists within advocacy specializations cater to different clienteles, and so we expect that lobbyists who specialize in specific advocacy activities will attract different clienteles than those who do not. For example, appropriations lobbyists ought to be able to deliver government largesse to any industry. Conversely, preparing highly technical amicus briefs or notice-and-comment letters for proposed regulations requires a greater deal of specific legal and policy expertise than run-of-the-mill legislative monitoring or appropriations earmarking (Furlong, 1997; Yackee, 2006). Therefore, legal and regulatory advocates

will recruit industry-specific clienteles, and together these individual-level professional traits should explain a significant amount of variation in the diversity of lobbyists' clienteles, regardless of their revolving door status.

Data on Revolving Door Lobbyists

On the basis of assumptions drawn from both the interest group literature and intuition about the lobbying profession, we generated an original data set of lobbyists' professional histories and lobbying activities from multiple sources. To create as large and comprehensive a data set as possible, we:

1. drew a random sample of individual lobbyists registered in 2008;
2. conducted searches using multiple archival sources to record information about lobbyists' government experience and subsequent lobbying specializations; and,
3. linked the coded sample of lobbyists to measures of their clienteles and lobbying activities from LDA reports filed in 2008.

We initially obtained lobbying disclosure data from the Center for Responsive Politics (CRP) Lobbying Database for the years 1998–2008. The advantage of this database is that CRP standardizes the names of LDA registrants, clients and lobbyists. More importantly for our theory, they code clients by their primary economic sector. Unlike the raw LDA data from the House or Senate public records offices, we are confident that this data set is as accurate and complete as possible.

To draw our sample, we constructed a list of unique, individual lobbyists based on their names and identifying code, then drew a sample of 1622 lobbyists ($n = 11$ per cent); 8 of these records were dropped as duplicates (that is, name disambiguation problems such as common names, name changes and false identifying code matches).[3] Table 1 compares descriptive statistics for the resulting 1614 in-sample lobbyists to the roughly 13 000 lobbyists remaining in the sampling frame.

Because our sampling frame includes data on each lobbyist's contemporaneous employment status, clients and activities in 2008, we can compare the in- and out-sample across a variety of characteristics. We find no statistically significant differences in the number of lobbyists who report being a covered official, who have served as a member of Congress or who worked as a contract lobbyist.[4] For each lobbyist, we are also able to derive the number of disaggregated issue area-reports,[5] the number of issue areas in which they were active and the number of clients they reported lobbying for at any time in 2008. Accordingly, we can conclude that our random sample is representative, and we are confident in generalizing our findings to the population.

Once the sample was drawn, three trained research assistants conducted comprehensive searches using a computer terminal in one of the author's campus office throughout the 2011–2012 academic year. For each lobbyist, coders sequentially searched each source for names and name variants.[6] The coding scheme identified

Table 1: Lobbyists' characteristics in 2008, in- and out-of-sample

Variable	*In-Sample*	*Out-Sample*
Number of Unique Lobbyists	1614	13 031
Proportion of Covered Officials (in percentage)	25.1	24.2
Proportion of Former Members of Congress (in percentage)	0.74	1.15
Proportion of Contract Lobbyists (in percentage)	40.0	46.0
Number of LDA Issue Area-Reports		
Mean	31.8	30.4
Median	17.0	14.0
Number of Active LDA Issue Areas (of 78)		
Mean	7.4	6.8
Median	5.0	5.0
Number of LDA Clients		
Mean	4.2	4.2
Median	1.0	1.0

lobbyists' (i) previous employing offices in Congress, the White House and federal bureaucracies and (ii) their employment status and advocacy specialties, as well as partisan and campaign activities and demographic information.

Although time-consuming and laborious, this manual search process provides a rich data set of revolving door information. Previous work used innovative name-matching techniques to combine data from two sources by linking lobbyists by name. Alternatively, we start with a random sample of names drawn from all LDA report and, then comprehensively search multiple sources to verify former government employment. We found that the most fruitful searches relied on a variety of sources. Specific job details, such as government employment tenure, that one source lacked another often included, and vice versa. Though the availability of information for some lobbyists was scarce, we are confident that these search and coding procedures produced as thorough and accurate account of the revolving door as feasible.

The underreporting bias of covered officials

The most immediate finding from this search process is that the public disclosure requirements for covered official lobbyists clearly fall short of the transparency ideal. Figure 1 compares the number of lobbyists who reported being a covered official to our evidence that they in fact worked in the government.

We code lobbyists as covered officials if they reported it for any client in any quarter in 2008. The LDA does not require lobbyists to continuously disclose their revolving door status after initially doing so on a previous report on behalf of a client, though it does not prevent them from doing so. Thus, we interpret this as a choice – whether conscious or by default – to hide details about previous government work from immediate public scrutiny.

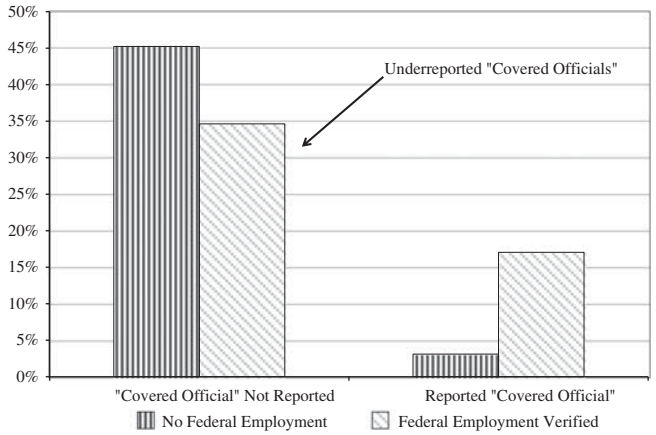

Figure 1: The LDA's revolving door transparency loophole.
Note: $N = 1614$ LDA registered lobbyists. Likelihood ratio χ^2 (1) = 192.43, $P<0.001$.

The results are remarkable. Only 29.7 per cent of lobbyists report their covered official status, although 51.7 per cent of the sample was found to have held a position in government. Of the roughly half of lobbyists who were found to have worked in the government, two in three (67 per cent) chose not to report that information. When we extrapolate to the full 2008 population, we estimate that approximately 3948 ($\pm$2.3 per cent margin of error) registered lobbyists chose not to disclose their previous government employment in 2008.

Several caveats about lobbying disclosure regulations are in order. First, policy advocates, strategists and other consultants who do not register are excluded from both the numerator and denominator, so our findings are limited to those lobbyists who meet the narrow statutory definition of an active lobbyist. Second, our estimate measures registered lobbyists in the year immediately after the passage of Honest Leadership and Open Government Act, when a number of previously registered lobbyists 'de-registered' to avoid disclosing certain campaign donations under new disclosure requirements (Center for Responsive Politics, 2010). If anything, we may be underestimating the revolving door. And, finally, our data represent merely a 1-year snapshot. We cannot say how our 52 per cent revolving door estimate speaks to speculation that K Street's revolving door phenomenon has grown in recent years. We can say with a great deal of confidence, though, that this is the most complete and accurate account of the revolving door lobbyist population to date.

Lobbyists' previous federal government employment

Though our estimation of the size of the revolving door and our evidence of an underreporting bias is novel, our primary empirical contribution is the level of detail

Table 2: Number of federal government jobs held by sampled registered lobbyists

Federal Government Jobs	*Frequency*	*Pct.*	*Cumulative Pct.*
1	438	52.5	52.5
2	230	27.6	80.1
3	103	12.4	92.5
4	38	4.6	97.0
5	17	2.0	99.0
6	5	0.6	99.6
7	3	0.4	100.0
Total	834	100	—

Note: $N = 1495$ lobbyist-job observations.

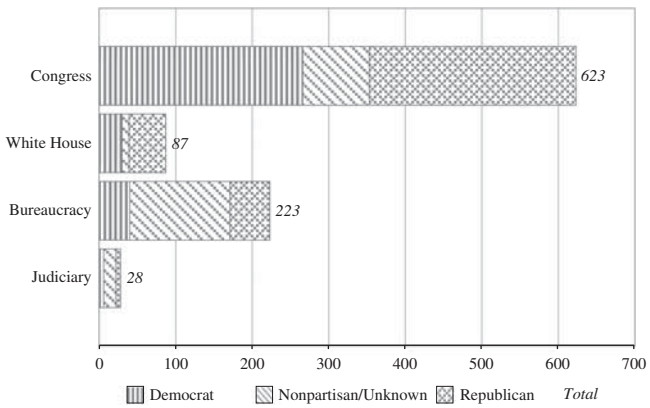

Figure 2: Lobbyists previously employed in the Federal government.
Note: $N = 834$ revolving door lobbyists. Some lobbyists may be in more than one category. Party denominations refer to the party of the employing office-holder.

in our account of lobbyists' government careers. The 834 revolving door lobbyists in our sample held a total of 1495 federal jobs. These individuals held an average of 1.8 (SD = 1.1) jobs and Table 2 shows how lobbyists are distributed by their number of jobs. Nearly half – 47.5 per cent – held more than one federal job, though the modal category is one. To suppose that lobbyists have connections to a *single* former member of Congress or legislative committee is not a trivial assumption, but a serious underestimation of the scope of the revolving door.

In Figure 2, we disaggregate lobbyist-job observations by institution, the most general classification possible. Congressional experience is by far the most common among lobbyists, with more than three-fourths of the sample having worked in Congress. Conversely, 23 per cent of the revolving door population has no experience on Capitol Hill, while only a small number of lobbyists worked in the

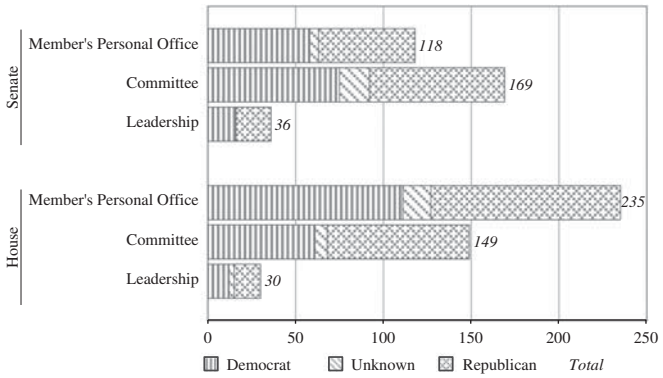

Figure 3: Lobbyists previously employed in Congress, by chamber.
Note: $N = 624$ revolving door lobbyists. Some lobbyists may be in more than one category. Party denominations refer to the party of the employing office-holder.

judicial branch.[7] These findings alone are not inherently surprising, given the size and organizational structure of Congress, but they also point to the legislative-centric nature of lobbying disclosure statutory definitions. In addition, 121 (14.5 per cent) revolving door lobbyists worked in both Congress and the executive branch. Roughly 40 per cent of this subset worked in the White House.

We also distinguish jobs by party as a face-reliability check. We code lobbyists' former employers' political party as Democrat, Nonpartisan/Unknown or Republican. The results are as might be expected. Congressional and White House jobs are more likely to be partisan, though distributed fairly equally. Lobbyists employed in Congress were split evenly at 43 per cent for both Democrats and Republicans. Former White House employees were 55 per cent Republican and 34 per cent Democrat, which makes sense as our sample was drawn in the eighth year of the George W. Bush administration. Conversely, former bureaucrats and judiciary were much more likely to have been nonpartisan civil servants. Though vague qualitative source material certainly introduced measurement error, these partisan comparisons give us confidence that the errors are not systematic across job observations.

We further disaggregate observations in Congress in Figure 3. Two patterns reflect the idiosyncratic organizational features between the House and Senate. First, House members' personal offices are by far the most common employment connection. Proportionally, however, there are only twice the numbers of lobbyist-job observations in the House than in the Senate, even though there are more than four times the number of offices. Second, in the House, there are 1.6 lobbyist-job observations for members to committees, whereas in the Senate there are only 0.7. Intuitively, this description seems accurate as senators both sit on more committees and tend to be allocated dedicated resources in committee

Table 3: Climbing the congressional staff ladder to the revolving door

Congressional Staff Hierarchy	*Frequency*	*Pct.*	*Cumulative Pct.*
Unknown/Legislative Support Agency	60	9.8	9.8
Member's Personal Office Only	244	39.9	49.7
Committee Only	191	31.2	80.9
Member and Committee	56	9.2	90.0
Leadership Only	25	4.1	94.1
Committee and Leadership	26	4.3	98.4
Member, Committee and Leadership	10	1.6	100.0

Note: $N = 612$ revolving door lobbyists. The 12 former members of Congress in the sample were not staff, so are excluded from this scale.

offices to hire staffers who report directly to them. There is little reason to suspect that Senate differences in revolving door connections are inherently more or less appealing to interest groups. Though separate, they are coequal when it comes to passing legislation.

However, we expect that the higher the staffer's position in the Congress, the more connections she will have to exploit as a lobbyist. Table 3 presents the cumulative frequency of the number of employment instances held by congressional staff lobbyists in our sample.

We also constructed a scale variable that ranges from the relatively low level of cases of staffers whose employers were unidentifiable or were in a legislative support service agency to a high level where an individual staffer held jobs in member, committee and party leadership offices. The modal category includes lobbyists who were solely employed in a member's personal office, though roughly 40 per cent of our sampled lobbyists have experience in a committee and/or leadership office.

All told, our description of the revolving door is revealing. First, counter to journalistic accounts, very few lobbyists are former members of Congress, although we do not suggest the converse is untrue. According to one estimate, at least 53 per cent of retired or defeated members of the 111th Congress took jobs with organizations registered to lobby (Center for Responsive Politics, 2011).[8] Second, the most common type of revolving door lobbyists are those who worked for a House member, although a significant portion worked in multiple jobs and in more significant positions on and off Capitol Hill. Finally, unlike previous revolving door studies that focus exclusively on congressional employment, we show that a non-trivial proportion of the revolving door population worked elsewhere in government.

Lobbying specializations

Our data also identify relevant professional characteristics of lobbyists regardless of their revolving door status. Our theory does not assume that previous government

Table 4: Comparison of conventional and revolving door lobbyists, by lobbyist occupation and advocacy specialization

	Previous Federal Employment				*Difference*	*z*
	Revolving Door = 1		*Conventional = 0*			
	Proportion (in percentage)	*SE*	*Proportion (in percentage)*	*SE*		
Lobbyist Occupation						
Contract Lobbyist	50	0.017	30	0.016	20	8.15*
General Interest Firm ($n = 646$)	85	0.017	84	0.023	1	0.18
Advocacy Specialization						
Legislative Policy/Process Advocacy	88	0.011	87	0.012	1	0.74
Appropriations/Earmarks Advocacy	48	0.017	38	0.017	11	4.26*
Regulatory/Legal Advocacy	30	0.016	31	0.016	1	0.51

*$P < 0.001$.
Note: $N = 834$ revolving door lobbyists and 780 conventional lobbyists, and except for the comparison of contract lobbyists who are either self-employed or work in small firms ($n = 96$) versus those who work in large firms ($n = 550$). Differences are rounded.

experience alone will explain all the variation in the kinds of interests lobbyists represent, so we identified contract and in-house lobbyists, contract lobbying firm type, and lobbying specializations. Table 4 compares lobbyist type and advocacy specializations between conventional and revolving door lobbyists, coded as a dummy variable if we verified any previous government experience.

First, we identified contract lobbyists in CRP's lobbying database and coded 0 = in-house lobbyist and 1 = contract lobbyist. Revolving door lobbyists are more likely to work as hired consultants than conventional lobbyists by a ratio of nearly 2:1. Second, among the subset of contract lobbyists, we distinguish between small, special-interest boutique firms that explicitly promote themselves as focusing on one or a few industries or issues = 0 and general interest firms = 1. Coders identified large, typically well-known, general interest firms based on descriptions in their company Websites, CRP's 'Top Lobbying Firms' list, Lobbyists.info and the Lexis-Nexis *Martindale-Hubbell* law directory. Though relatively few contract lobbyists work for boutique firms – roughly 15 per cent – we expect general interest firms, by definition, to attract clients with a wide variety of interests. There is no statistically significant difference between revolving door and conventional lobbyists who work for general interest or boutique firms. Political journalists' fascination with the large, multimillion-dollar revenue-producing lobbying firms as home to the evils that plague the political system is misguided. Just as many revolving door lobbyists work in boutique lobbying shops as those who work for the K Street titans.

Next, we code lobbyists as legislative policy and process experts = 1 if they focus on policy issues in Congress. Empirically, this specialization is extremely common; 87 per cent of the sample specializes in legislative lobbying. But when we identify

funding earmark specialists – coded as 1 if they reported lobbying on 'Federal Budget and Appropriations' for any client in any quarter in 2008 – we find that revolving door lobbyists differ from their conventional counterparts. Revolving door lobbyists are 27 per cent more likely to do appropriations lobbying. The final specialization – legal and regulatory advocacy – is slightly more common than appropriations lobbying, although 60 per cent of these specialists are also legislative advocacy specialists as well.

Lobbyists' clienteles

In this section, we turn to developing a summary measure for lobbyists' clienteles as our dependent variable. CRP codes all lobbying clients by their primary economic mission into 13-sector categories such as agribusiness, transportation, health and financial services. Table 5 summarizes three variables calculated from 51 475 quarterly LDA reports filed by our sample of lobbyists in all four quarters of 2008.

The first two variables are simple sums calculated from LDA reports, and the third is a more complicated summary expression for clientele diversity. Lobbyists in our sample represented just over four clients from two economic sectors on average in 2008, although by definition in-house lobbyists ought to have only a single client.[9] Contract lobbyists alone represented an average of 8.4 (SD = 10.9) clients from 3.5 (SD = 2.7) sectors.

Although both raw counts of clients and sectors reflect variation in the interests that a given lobbyist represents, they pose a significant measurement problem for the concept of interest diversity. Consider this hypothetical: Lobbyist A and Lobbyist B both represent 10 clients from the same 5 discrete economic sectors: agribusiness, defense, telecommunication, finance and health. Ostensibly, their clientele diversity is equal. However, what if Lobbyist A represents two clients from each of the five sectors, and Lobbyist B represents one client each from the first four sectors, and six clients from health? Clearly, Lobbyist B is more of a health sector specialist than Lobbyist A, who has a more diverse client portfolio.

Therefore, we draw on the concept of information entropy to represent diversity (Shannon, 1948; see also Ben-Naim, 2007). Following (Boydstun *et al*, forthcoming),

Table 5: Lobbyists' clienteles, 2008

	Mean	*SD*	*Minimum*	*Maximum*
Number of Clients	4.2	8.1	1	93
Number of Sectors	2.1	2.2	1	13
Clientele Diversity	0.13	0.22	2.04^{-16}	0.88

Note: $N = 1614$. Clientele diversity is Shannon's H entropy for clients' sectors.

we calculate a normalized Shannon's *H* entropy score as a universal measure for clientele economic sector diversity, which takes the form:

$$\frac{-\sum_{i=1}^{n} p(x_i) * \ln p(x_i)}{\ln(N)}$$

where $p(x_i)$ is the proportion of clients from a specific sector and N is the total number of sectors. This formula has the key property of accounting for variation in both the number of clients, which is theoretically unlimited – although actually ranges from 1 to 93 – and the number of sectors, which is fixed in a range from 1 to 13.

Utilized recently by political scientists in the study of executive agendas (Jennings *et al*, 2011), the news media (Boydstun, 2013) and organized interests' policy engagement (Halpin and Thomas, 2012), the Shannon's *H* score provides the advantage of accounting for local variations in lobbyists' client portfolios. Simply summing clients across industries would not capture the difference between lobbyists with multiple clients in a single sector, and lobbyists with multiple clients in that sector in addition to a variety of clients in other sectors. Boydstun *et al* (forthcoming) show that it is more sensitive at low and high levels of diversity than the Herfindahl Hirschman Index, a common measure of market concentration in economics, and the measure Gray and Lowery (1996) adopted to test their ecological theory of interest group diversity.

Interpreting this clientele diversity variable is straightforward. Simply, lobbyists who represented a single client *or multiple clients from the same sector* would have relatively low scores, whereas lobbyists who represented many clients, all of which came from different economic sectors, would have relatively high scores. The variable has a theoretical low ≈ 0, meaning the lobbyist's clientele is highly concentrated in a single economic sector. The actual value of the minimum clientele diversity is 2.04^{-16}, which reflects a lobbyist with a single client from a single sector, by definition. Values above this minimum are distributed normally, so we treat the variable as being left-censored. The theoretical high diversity score ≈ 1. The highest score among sampled lobbyists is 0.88; this lobbyist represented 58 clients from 12 economic sectors.

There are many ways to operationalize how lobbyists represent organizations before government, but we believe this is the most meaningful, comprehensive and generalizable way to summarize economic interest representation. We conceptualize lobbyists who have a relatively narrow clientele as those with expertise relevant to one or a few economic sectors. Alternatively, lobbyists with a relatively diverse clientele epitomize the view that lobbyists whose ability to access those in power is more important than sector-specific issue familiarity. We do not suggest a strict dichotomy between lobbyists' subject-matter expertise and their access or insider knowledge; all successful lobbyists have some degree of expertise, knowledge and access. We simply conceive of the level of clientele diversity as an empirical manifestation of expertise or access. Even if lobbyists were to publicly report their primary representational motivations, there is no reason to suspect that such

self-reports would be valid observations. We thus infer lobbyists' *primary* mode of influence – access or expertise – based on the considerable variation in their respective clienteles.

Explaining Lobbyists' Clientele Diversity

Now we test our hypothesis that lobbyists' clientele diversity is a function of their previous government experience. Yet we face the problem that equally low clientele diversity scores may be low for separate reasons. For instance, an in-house lobbyist and a contract lobbyist with only a single client have identical clientele diversity scores. The in-house lobbyist has a low diversity by nature of her employment situation, whereas the contract lobbyist may report lobbying on behalf of a single client for any number of reasons. The underlying reason why the contract lobbyist chose a single client is unobserved in the disclosure data.[10]

To address this feature of the lobbying disclosure data, we estimate two censored regression models to account for government experience, lobbying occupations and advocacy specialization. Both models appropriately treat the minimum clientele entropy score as left-censored, although we estimate parameters under different assumptions of which cases ought to be censored. In Model 1, we fit a Tobit regression model at the 2.04^{-16} interval. In other words, we lump together in-house lobbyists with contract lobbyists with a single client, which censors 1113 lobbyists from the normal distribution. Model 2 fits the same right-hand-side predictors, except it censors the 968 in-house lobbyists from the 646 contract lobbyists. Both models assume that client diversity entropy scores in the uncensored cases are distributed normally, although they fit a maximum likelihood estimation that also assumes the means in censored and uncensored cases' clientele diversity is different than 0. The sigma statistic allows us to reject the null hypothesis that the full model fits the left-censored distribution under both assumptions.

Table 6 reports the results. Both models fit the data well.[11] The coefficients are difficult to interpret because entropy accounts for local variation in both clients and sectors, although the effects provide convincing evidence that the revolving door is related to the lobbying-as-access view when we control for lobbyists occupations and advocacy specializations.

In Model 1, revolving door lobbyists increase their client diversity score by 0.06 for every additional job they held in the federal government, and 0.02 for every step up the congressional staff hierarchy. And, as predicted, executive branch bureaucrats-turned-lobbyists retain a more economically concentrated clientele than other lobbyists. Lobbyists who were elected as members of Congress or who worked at the White House, however, do not recruit clienteles that are different than other lobbyists. Comparatively, the former members of Congress dummy variable have a point estimate roughly five times that of the staffer hierarchy variable. But recall that

Table 6: Revolving door lobbyists and clientele diversity

	Model 1		*Model 2*	
	b	*Robust SE*	*b*	*Robust SE*
Previous Federal Employment				
Number of Government Positions	0.058**	0.015	0.037*	0.012
Former Member of Congress	0.111	0.124	–0.004	0.073
Congressional Staff Hierarchy	0.020*	0.010	0.017*	0.008
White House	0.006	0.050	0.010	0.043
Bureaucracy	–0.083	0.034	–0.034	0.026
Lobbyist Occupation				
Contract Lobbyist	0.550**	0.081	—	—
General Interest Firm	0.107*	0.040	0.391**	0.009
Advocacy Specialization				
Legislative Policy/Process	–0.039	0.040	–0.019	0.027
Appropriations/Earmarks	0.184**	0.024	0.107**	0.017
Regulatory/Legal	–0.053*	0.026	–0.068**	0.019
Intercept	–0.634**	0.049	–0.516**	0.030
Sigma	0.343	0.012	0.229	0.006
Log pseudolikelihood	–486.32	—	–44.21	—
Pseudo R^2	0.51	—	0.95	—
Uncensored observations	501	—	646	—

* $P < 0.05$; ** $P < 0.001$.
Note: $N = 1614$ lobbyists. The dependent variable is clientele diversity, or the lobbyists' Shannon's H entropy for clients' economic interests. Coefficients are censored regression parameter estimates. Model 1 has a fixed left censor at 2.04^{-16}, the minimum value. Both in-house lobbyists and contract lobbyists with a single client are censored. Model 2 is censored by contract lobbyists.

there are only 12 former members in the lobbyist sample, so there is insufficient variation in their clientele diversity and the standard error is high by comparison.

This particular finding is meaningful not because of our inability to reject the null hypothesis for former legislators, but simply because former members are so rare in the larger population of lobbyists. Former members are so uncommon that the error term obscures the effects on the model. Yet, we have little doubt that the unique experiences of congressional membership afford them special privileges as lobbyists. Indeed, in an interview with political scientist Beth Leech, former Representative Bob Walker states it outright:

> I think that the reason why former members have a great deal of value inside the process is simply because we've been there. We've been a part of the club. We maintained some ties to the club. That gives us some credibility. (Leech 2013, p. 23)

Thus, we interpret this null finding with a grain of salt. The 10 contract-lobbyist former members do not have significantly more diverse clienteles than the typical

revolving door contract lobbyist in the sample, but they likely play a different role for the clients they do have.

Moreover, these revolving door effects are in addition to controls for occupations and specializations described above.[12] As expected, contract lobbying has the strongest effect when cases are censored at the minimum. For-hire lobbyists who work at general interest lobbying firms are also positively associated with clientele diversity. These two associations are not surprising given the business models of for-hire lobbyists.

Finally, lobbyists who specialize in appropriations lobbying do not represent the same set of interests as other lobbyists. This effect is extremely telling, as Federal Budget & Appropriations is the single most popular LDA issue area for interest groups to report activity since Senate records became electronically available in 1998 (Center for Responsive Politics, 2013). Appropriations lobbyists specialize in getting their clients in the door for the ask, not because they master complex, technical issue details. This specialty applies to clients from any economic sector. It makes intuitive sense that appropriations lobbyists have more diverse clienteles. The opposite is true for legal and regulatory advocates, who have 0.06 more concentrated clienteles than other lobbyists. Specializing in legislative lobbying – the default – makes no difference in lobbyists' client portfolios.

In Model 2, we drop the contract lobbying variable as a predictor and instead use it to determine which observations to censor. The full model fit improves significantly over Model 1, although we recognize that censoring in-house lobbyists from the normal distribution is arbitrary, as contract lobbyists with a single client are effectively identical. The patterns of association remain consistent in the second estimation, with the exception of lobbyists who previously worked in a federal bureaucracy. The coefficient for former bureaucrats is similar and in the same direction, but we fail to reject the null hypothesis ($t = -1.36$; $P = 0.17$).

Overall, our expectations about previous government employment predict clientele diversity well. If our elaboration of the insider-access versus information-supply perspectives on lobbying is accurate, and if our clientele diversity measure is a valid proxy for the concept, then we find telling empirical evidence that the revolving door indeed matters for how interests are represented in Washington. The professional connections and experience that come with having worked in government give these lobbyists certain privileges, and they exploit these advantages to recruit clients from the full spectrum of economic interests. In doing so, we can infer that revolving door lobbying fails to meet the deliberative interest representation ideal, even if outright corruption is absent.

Extensions and Future Research

We present here what we believe to be the most comprehensive study to date on the size and shape of the revolving door community in the ranks of Washington

lobbyists, as well as its effects on interest representation. This project does have its limitations, so we make three general recommendations for future research on the revolving door.

First, our sample was limited only to the roughly 13 000 lobbyists who actually filed disclosure reports in 2008. It is absurd to think that LDA-registered lobbyists are the only people in Washington's private sector who attempt to influence the public policy process. Notable recent examples include former Senate Majority Leader Tom Daschle (D-SD) – now Senior Policy Advisor at DLA Piper, a major Washington lobbying firm – and former Speaker of the House Newt Gingrich (R-GA) – whose strategic 'historical' advice-for-pay to Freddie Mac after he left Congress became a contentious topic in the 2012 Republican presidential nomination contest. Future work should compare government careers from a similarly representative sample of unregistered lobbyists to the present sample (see LaPira and Thomas, 2013).

Second, the biographical search process was inadequate to collect internally reliable information on revolving door lobbyists' seniority, tenure and policy specialization *when they worked inside government*. Each of these variables could serve as meaningful covariates for the models presented here. This shortcoming was not due to a lack of effort, but rather a lack of good information. Such details about individuals are hard to come by from public and proprietary sources. Other methods of data collection, such as elite interviews and surveys of lobbyists regarding their employment histories, may be more fruitful.

Third, this project only looked at the subsequent private sector side of the revolving door. Future work should identify individuals who go back and forth between the private and public sector, especially before and after significant institutional events like a new administration or party change in Congress, or interventions such as institutional changes in 'cooling-off' periods and other lobbying restrictions for government employees (Drutman and Cain, forthcoming). The findings we present here address the revolving door after lobbyists have already gone through it, and not the possibility of post-government employment offered as some form of deferred bribe for favors granted while in government.

Finally, and most importantly, we do not measure lobbying outcomes or success (Baumgartner *et al*, 2009; Lazarus and McKay, 2012), even though the study of influence presumes that lobbying does influence policy outcomes. We can make the inference that interest organizations would not be differentially attracted to revolving door lobbyists if they did not prove their worth when it came to generating favorable outcomes, but we do not document it here. Future work on revolving door lobbying ought to measure its effect on policy change, though this holy grail of interest group influence is challenging to observe directly.

Implications and Discussion

Our theory of the revolving door and the evidence we present to support its claims have implications for both lobbying reform and the study of interest representation. If we are primarily concerned about open government and lobbying transparency then the evidence presented here verifies anecdotal evidence that disclosure is inadequate. We advocate enhancing lobbying transparency by expanding the statutory definitions of lobbying activities and requiring that lobbyists disclose more information about government employment. It would not be a significant cost to lobbyists to submit an accurate resume or other uniform account of their work history in the government. It ought not take hundreds of labor hours to reconstruct this information for a small sample as our project has.

We also recommend that disclosure regulations ought to shift at least some of the reporting burden to government personnel, though we expect this option to be least palatable to the very politicians who would need to change the law. For instance, members of Congress, White House staff and bureaucrats ought to publicly disclose contact with previous employees and colleagues if the contact is official in nature, or face ethics penalties. If we really want to slow the revolving door, we ought to hold government officials democratically accountable for their part in the relationship as well.

More importantly, enforcement is all but non-existent because it would take an inordinate amount of resources – as well as political commitment – to verify disclosure accuracy. The underreporting bias alone should raise eyebrows, though it is likely just the tip of the iceberg of lobbyists who deliberately flout the transparency norm, even if they are technically compliant with the law when they do so.

If the normative concern is to limit the movement of powerful government insiders to the private influence industry then the results presented here should offer some caution. First, hyper-attention to only the highest-ranking former public officials may make for good headlines, but those individuals are only a tiny fraction of the revolving door population. Former members of Congress are different, but rare. Second, and perhaps more importantly, the revolving door effect on lobbying behavior is not absolute. We simply cannot label lobbyists with prior government experience as crooks; after all, lobbying pariah Jack Abramoff spent his entire career in the private sector. Our findings suggest that the connection between public service and private influence is multifaceted, so reformers ought to seek better information on the revolving door phenomenon before advocating lobbying employment bans, activity restrictions or other economic penalties for activities that are, after all, protected speech.

For social scientists engaged in basic research on interest representation in American politics, our findings suggest that the interest group literature lacks both good theory and good data on individual lobbyist-agents and their impact on the policy process. First, the variation in the client representation between individual

lobbyists that we show highlights a weakness in the extant literature on interest groups. Theories of interest group mobilization and influence explicitly or implicitly assume that the appropriate unit of analysis is the interest organization, not the lobbyist. Though not wrong, these theories are simply incomplete if they do not also account for the kinds of knowledge, expertise and access that individual lobbyists sell at a premium to the highest bidder.

Students of interest group politics have long demonstrated the system's tremendous representational bias toward well-moneyed interests, suggesting Schattschneider's (1960 [1975]) warning about the heavenly chorus continues unabated. If indeed the revolving door significantly distorts the representation of interests before government, then we need to know more about how the already well represented seek entrance by hiring those who hold the right keys.

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Notes

1 We do not assume relatively fixed economic interests and relatively volatile political issues to be perfectly aligned. But we do assume that issue expert lobbyists will tend to represent a set of organizations with highly similar interests.

2 Though a revolving door lobbyist's work sequentially precedes their lobbying employment in time, it is neither a necessary nor sufficient condition for that employment. Accordingly, we treat previous government work status and current lobbying employment status as independent, though we empirically examine the relationship between those select lobbyists who had worked for the government.

3 By definition, the identities of registered lobbyists is public information. However, we choose to keep them anonymous here. Lobbyists' names will be made available by the authors upon request for replication purposes.

4 The two-sample difference in mean test for former members of Congress suggests that the 0.41 per cent nominal difference is not significantly different from 0, $z = 1.49$, $P = 0.135$.

5 LD-2 reports are filed at the registrant-client level of analysis. Individual lobbyists may be listed for as few or as many issue areas mentioned on these reports. This measure disaggregates these reports to the lobbyist-issue area level, and sums.

6 A description of the original sources coders used to identify biographical data for each lobbyist can be found in Table A1 in the appendix.

7 Typically, these jobs were as judicial clerks, which does not match the intuitive definition of the revolving door. We report them here, but exclude them from subsequent analyses.

8 CRP's study is not a direct comparison to our sample, as they do not distinguish former members of Congress employed by the private sector who do or do not register to lobby.
9 Thirty-three in-house lobbyists had more than one client in 2008 because they switched employers at some point during the calendar year. In these cases, we coded the lobbyist's contract status according to their destination employer as listed in the fourth quarter, and treat the results as measurement error.
10 The LDA requires lobbyists to report clients only if they earned US$5000 or more on their behalf on lobbying activities. Many lobbyists consult clients on legal and public relations matters as well, so while they may continue under retainer in a given reporting period, they may be engaged in activities that do not require reporting.
11 In both models, we assume that revolving door effects on clientele diversity do not decay over time – having previously worked in the federal government is an individual characteristic that remains important to client recruitment over time. To consider the potential for endogeneity, we examined a two-stage version of Model 1 that predicted revolving door status on lobbying specialization in the first stage. Estimation results did not significantly differ from those reported in Table 6.
12 We also collected data on the timing and duration of former government positions, but we are not confident enough in their reliability for inclusion in our analysis. Data were missing for more than half of the sampled lobbyists. Duration and timing data can be identified for more recently employed lobbyists who worked in Congress using the LegiStorm database, but most lobbyists' biographies do not explicitly state start and end dates of government employment.

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Appendix

Table A1: Original Source Materials For Lobbyists' Previous Employment

Source	*Availability*	*Description*	*Qualitative Data*
Senate Office of Public Records (SOPR) Lobbying Disclosure Database	Public	Searchable, raw LD-1 and LD-2 lobbying disclosure reports.	Includes only LD-2 reports as submitted and filed by LDA registrants, so it includes reporting and name disambiguation errors, and no client information beyond organization's name.
CRP Lobbying Database	Public	Cleaned and coded database of every LD-2 lobbying report on file with SOPR, 1998-present.	Includes all information from SOPR database, with client and lobbyist names disambiguated at a greater than 95% completion rate, and codes clients for 13 economic sectors.
CRP Revolving Door Database	Public	Selected LDA registered lobbyists and non-registered advocates.	Includes all self-reported biographical data on file with Lobbyists.info in 2007, updated periodically from media reports on personnel changes.
Congressional Quarterly First Street Database	Proprietary	All LDA registered lobbyists on file with Clerk of the House since 2004.	Links registered lobbyists to entries in Congressional Staff and Federal Staff directories from 1993 to present.
Lobbyists.info Directory	Proprietary	Selected LDA registered lobbyists and non-registered advocates.	Includes all self-reported biographical data on file with Lobbyists.info.
Lexis-Nexis *Martindale-Hubbell* Directory	Proprietary	Selected attorneys.	Includes all self-reported biographical data on file with Martindale-Hubbell.
LegiStorm Pro Directory	Proprietary	Selected LDA registered lobbyists and non-registered advocates.	Includes database of all congressional staff salaries, supplemented with additional sources from media reports and public sources.
Firm / Organization Websites	Public	Selected LDA registered lobbyists and non-registered advocates.	Includes self-reported biographical data, as published by the lobbyists' current employers.
LinkedIn Social Network	Membership	Selected LDA registered lobbyists and non-registered advocates.	Includes self-reported biographical data, as published by the lobbyists' themselves in their professional profiles.